

The Claremont City Council held a meeting on Wednesday, May 13, 2020, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Lovett at 6:45 p.m.

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

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Members of the Council present were:

Ward I Councilor Andrew O'Hearne – Council Chambers – Councilor Stone

At-Large Councilor Abigail Kier – Home – Alone

Assistant Mayor Allen Damren – Home – Alone

Mayor Charlene Lovett – Home – Alone

At-Large Councilor Debora Matteau – Home – Alone

At-Large Councilor Nicholas Koloski – Restaurant – Alone

Ward II Councilor James Contois – Home – Alone

Ward III Councilor Jonathan Stone – Council Chambers – Councilor O'Hearne

Absent:

At-Large Councilor Erica Sweetser

Also present:

Edward Morris, City Manager

AGENDA CHANGES

None

REPORT OF THE SECRETARY

A motion was made by Ms. Kier and seconded by Mr. Stone to accept the minutes of the April 8, 2020, City Council meeting.

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

A motion was made by Ms. Matteau and seconded by Mr. Damren to accept the minutes of the April 22, 2020, City Council meeting, as amended.

Mr. O'Hearne said on the April 8 minutes, it was indicated where Councilors were located during the meeting, but these minutes did not. Councilors agreed these should also indicate that. [Note: By mistake, that question was not asked at the April 22 meeting.]

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

MAYOR'S NOTES

Mayor Lovett read a proclamation on behalf of the City Council for Police Week.

Police Chief Mark Chase said that members of the Police Department appreciate the recognition.

Mayor Lovett thanked all who joined the American Legion in putting up flags at the gravestones of veterans in the cemeteries. The Memorial Day Parade has been cancelled this year.

She thanked the Ink Factory, National Field Reps, and Red River, for bringing together over 100 volunteers for trash removal throughout the City on May 8th. She thanked all who participated in Earth Day activities whether in April or May.

Also, as a reminder do not flush non-biodegradable items into the sewer system.

CITY MANAGER'S REPORT

- **Airport-** After some discussion with our Engineers and the New Hampshire Department of Transportation- Aeronautics (NHDOT-A), the City has filed for CARES Act reimbursement in the amount of \$30,000.00 for aviation fuel purchased on January 28, 2020; the total purchase was \$30,686.80. It still has to go through Governor and Council for approval before coming before the City Council for approval. After the grant is approved and received, the money will be placed in the Airport account and can be used for the Apron Project.

On May 6, 2020, the Governor and Council approved an Environmental Assessment Study for an easement associated with the Claremont Municipal Airport runway project, in the amount of \$36,898.

- **Project Based Vouchers Decision** – Regarding placing Claremont Housing Authority (CHA) project-based vouchers (PBV) in the Goddard Block, after completing research, he found that:
 - The 10 vouchers would come from the 140 available in Claremont, reducing the number available to be used in other developments.
 - The 10 PBVs could cause a situation where someone who makes under 50% of the Sullivan County median income, but does not qualify for, or has not applied for, section 8 would not be allowed to rent the unit.
 - The apartments could be rented using the 10 available section 8 vouchers we have now, but the vouchers would not be dedicated solely to this building.

Because of this, he did not see how placing 10 PBVs in the Goddard Block would be beneficial to the City of Claremont. Therefore, he has decided not to sign the HUD document.

- **Fire-** On May 5, 2020 there was a fire at 28 Myrtle Street and one occupant of the residence was found deceased.
- **147/139 Main Street-** Governor and Council approved the Emergency CDBG grant for 147/39 Main Street. All the paperwork has been submitted and we have received the release of funds from CDFA. Tom Krebs, the City's Projects Manager, is currently working with Kevin LaCasse to start the bid process.
- **56 Opera House Square** - On May 6, 2020, Governor and Council approved the CDBG grant for 56 Opera House Square, and the NEPA has been completed. Planning and Development Director Nancy Merrill will continue working with the West Claremont Center for Music and the Arts toward completion of this project.
- **North and Main Streets Project** – Because of the City's conservation easement, there is a 90-day waiting period prior to a public hearing. The warning for this waiting period and meeting should be going out this month. The public hearing on this project will

happen sometime near the end of August. After the public hearing, the project will move into final engineering, and completion of land acquisition or easements.

- **Tax Deed Auction** – With the COVID-19 shutdown and current State and Federal social distancing guidelines still in place, the City is planning to postpone the tax deed auction that was scheduled for June 6th. We are working with the auctioneer for a date in September.
- **Cemeteries** – Are being cleaned and should be ready for Memorial Day.
- **Parks & Recreation Department** – has received a new truck out of the FY 2020 budget.
- **Board of Assessors (BOA)** – The Governor's Emergency Order #25 regarding abatement of interest due to COVID-19 – upon staff recommendation, the BOA approved a simplified application based on COVID-19 issues.
- **Police Department** - Officer Richard Bell and Officer Rachel Foster have completed their NH Police Academy training this month. The Police Academy was affected by the COVID-19 pandemic with the implementation of the stay-at-home order from the State. They both moved to an online learning model for the academy training, and members of Claremont Police Department proctored the tests. They are now in the process of completing their field training. The Police Department has made accommodations to keep the social distancing orders in mind during this training period. Officer Lucas Finamore, our newest officer, started the Police Academy on May 4, 2020.

Chief Chase said some changes have been made in the Department due to recent events: discontinued employment fingerprinting, change to registry on Fridays, School Resource Officer (SRO) Crystal Simonds is still the school liaison, but has been reassigned to the Criminal Division. Regarding communication, calls are screened before sending out officers. Some calls are handled over the phone to protect social distancing, if it can be handled over the phone. They've changed to a Watch Commander. Bill Wilmot, former Deputy Chief, who is working part-time; Colby Casey, Stan Andrews, and Chief Chase are covering Watch Commander. Regarding staffing, they are short two full-time officers. Call volume is somewhat down. Domestic violence has increased; they are continuing to watch those calls. Happy news – Comfort Dog, Sully (community helped name him), should be on-line in three to four months.

Mr. Koloski said regarding Sully, people in the community would like to contribute toward his upkeep. Chief Chase said information will be put out regarding the account to be used specifically for the maintenance and upkeep of the program.

Mr. O'Hearne asked which positions are vacant. Chief Chase said line level Patrol Officer and Deputy Chief.

Mr. Contois thanked the Firefighters and Fire Chief Bryan Burr for their responses to the recent fatal fire and the one on April 2nd.

Mayor Lovett noted in Public Works' Report, it was reported that Claremont's water system is the second most efficient in electrical use in NH.

APPOINTMENT TO BOARDS AND COMMITTEES

Parks and Recreation Commission

A motion was made by Mr. O'Hearne and seconded by Mr. Stone to re-appoint Eric Zengota to Alternate Seat 2-Ward II of the Parks and Recreation Commission.

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

A motion was made by Ms. Matteau and seconded by Ms. Kier to re-appoint Jeffrey Chase to seat 6 – At Large of the Parks and Recreation Commission.

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Elks Education Fund Trustee

A motion was made by Mr. Damren and seconded by Ms. Matteau to re-appoint Tawnya Courtemanche as an Alternate of the Elks Education Fund Trustee.

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

Upper Valley-Lake Sunapee Regional Planning Commission

A motion was made by Mr. Contois and seconded by Ms. Matteau to appoint David Pacetti to seat 1 of the Upper Valley-Lake Sunapee Regional Planning Commission.

Roll call vote:
O’Hearne - yes
Kier - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

CITIZEN’S FORUM

Gary Merchant, Ward 2, talked about opening businesses safely and that he had heard that wearing a facemask reduces the transmission of the virus from 70% to less than 2%. He asked the Council to consider a local ordinance.

Rebecca MacKenzie, Ward 2, echoed Mr. Merchant’s concern. She said she is working with folks in the community as a psychotherapist. She talked about someone going to a beauty parlor and neither she nor the beautician were wearing masks. Ms. MacKenzie is concerned that businesses are not operating as safely as they can. They need to use as many protective measures as possible. She asked Councilors to consider a facemask ordinance.

Mayor Lovett “stepped down from Council table” to speak as a citizen.

Charlene Lovett, Ward 2 resident, talked about the McKenzie Project. In the McKenzie Drive area, Public Works found a memorial for Ronald W. McKenzie, who was killed in action in Korea August 12, 1950. She was asked because of her military background and other work she has done in the City on war memorials to collect information and send it back to Public Works. She has coordinated with the Historical Society, American Legion, VFW, and canvased the neighborhood for input. They are trying to redesign this memorial to resurrect his contributions to his country. Mr. McKenzie was decorated with the Bronze Star Medal for valor. He laid down his life to help fellow soldiers. The focus is to make a fitting tribute to him.

OLD BUSINESS

COVID-19 Update

Mr. Morris said today in NH, there are 3,239 cases; the last couple of days the number has been trending at right about 80 cases. Testing at Claremont Middle School: Tuesday 69, Sunday 40, and 90 are scheduled for Monday. Sullivan County still has 14 cases total. Still one active case in Claremont. Last week, Staff was working on GOFERR (Governor's Office for Emergency Relief and Recovery) funding and other funding opportunities. The Library is offering take-out books; people need to call to schedule a pick up. Regarding First Responder stipends, Finance Director Mary Walter and Human Resources Manager Samantha Lauzon are working through the details. The City is holding two Licensing Board meetings on Thursday and Friday to work through restaurant openings. Some people said that we are opening too soon and some are saying we are opening too slowly. We are following the State's reopening plan and we are working with businesses to make sure they are following the plan. The Governor has not issued an order to open gyms, yet.

Mr. Koloski asked if there was another way to reach businesses other than by City email, not all are getting them. Mr. Morris said he can talk to Ms. Merrill to see if she has a call list. He said Chief Chase will be on the radio on Wednesday, and he can bring it up then.

Mr. Contois said, for the record, that on April 8th, there were 13 deaths which was 2%. Today, there are 142 deaths, which is 4%. The numbers are not plateauing or going down. Calls to open, are calls to fail. Locally, we need to do what we can.

Ms. Kier agreed with Mr. Merchant regarding transmission prevention by wearing masks. She would be in favor of some kind of ordinance regarding mask wearing. She agreed with Mr. Contois. It is unknown what will happen. There is a prediction of second surge in the August timeframe.

Mr. Stone said there needs to be balance. The numbers are low in our area. He doesn't want to see a mandatory mask ordinance.

Ms. Matteau agreed with Ms. Kier. Wearing a mask shows you are being considerate for others. People may be asymptomatic and can spread the virus to others. To cut transmission by wearing a mask is not giving up freedom. She suggested having a resolution.

Mayor Lovett said she will be on a call with the Governor tomorrow and will share these concerns with him.

Mr. Koloski said he is not in favor of an ordinance. He said he has a friend who has PTSD (Post Traumatic Stress Disorder) and is faced with not going to work because his employer requires wearing a mask. He is not in favor of an ordinance with penalties. He suggested more education.

Ordinance 573 Planning Board Creation – Second Reading – Public Hearing

The purpose of this proposed change is to amend Section 2-116 of the Claremont City Code to specify the composition of the city planning board and provide for the appointment of planning board members and alternates. This information has previously been included only in city planning board regulations; however, the planning board is not empowered to determine the composition of or to appoint planning board members. State law reserves the composition and appointment of planning board members in cities with a city manager form of government to the City Council.

Enactment of this Ordinance will include the composition and appointment of city planning board members in the City Code and changes the composition and selection method for city planning board members and alternates. The Council and City Administration has requested this change.

A motion was made by Ms. Kier and seconded by Mr. Stone adopt to Ordinance 573 Planning Board Creation.

Ms. Kier read the ordinance into the record.

Mayor Lovett said the State statute states there shall be no more than five alternate members.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Legislative Update

Mayor Lovett said a letter was sent to the Council from Tom Irwin, Conservation Law Foundation, regarding making SB599 relative to testing for lead in water in schools and child care facilities, and HB1539 relative to the relocation of children with elevated lead levels, a priority when the Senate reconvenes. It is the position that the Council has taken on both bills in the past that it is a public health concern.

NEW BUSINESS

Comcast Cable Franchise Renewal Agreement

Mr. Damren said the new agreement is for 10 year. He asked if the present agreement is for 10 years. Mr. Morris said it is a 7-year agreement with a 3-year extension.

Mr. Contois asked about Comcast paying the City 5% and whether anyone had challenged that amount. Mary Walter, Finance Director, said she believes it is federal law that the maximum any community can get back in franchise fees is 5%. The City has had a cable agreement since 1990. Comcast took over from Adelphia in 2006. The City gets \$75,000 a year, plus the \$120,000 that is passed on to CCTV (Claremont Community Television). She said this is a long process. Comcast let us know in June 2017 they wanted to start the process. There are a lot of areas in the community that citizens would like to have service. This agreement starts that process to get service in some of those areas.

Mr. Koloski is concerned about this being a 10-year agreement.

Mr. O'Hearne is also concerned about the 10-year agreement. He commented that the agreement is 60 pages long. He would like to have more time to review it and mentioned tabling this until the next meeting.

Mr. Damren asked about making this a 7-year agreement with a 3-year extension.

Ms. Walter said the City has been out of contract since January. In order to make the investment to put this in the outlying areas, Comcast wanted a 15-year agreement, but the City said 10 years would be the maximum.

Matt Skane, Comcast, thanked Ms. Walter for all the work she has done on this agreement. The 10-year term is pretty standard. Comcast will be making a substantial investment in Claremont.

A motion was made by Mr. Stone and seconded by Mr. O'Hearne to table this to the next meeting.

Roll call / Voice vote:

O'Hearne - yes

Kier - no

Damren - yes

Matteau - yes

Koloski - yes

Contois - no

Stone - yes

Lovett - yes

Motion carried 6-2.

Ordinance 574 Amending Non-Union Employee Classification Plan – First Reading

The purpose of this proposed change is to replace the current Health Service Inspector position with that of the Deputy Building Inspector & Health Officer position. No grade or salary ranges will be impacted by this amendment as the new position will simply assume that of the former Health Service Inspector's pay schedule (Grade 8 of the Non-Union Employee Pay Schedule – Attachment C). The current maximum salary for a Grade 8 employee is \$56,829 and the minimum salary is \$37,362.60.

The amendment is intended to broaden interest in this position by expanding the scope of potential candidates for same. The Health Service Inspector position has been vacant for approximately 15 years and is somewhat limited in terms of its duties, the title and responsibilities for this new position are more in line with the needs of the City. With the change in title and description of duties, the hope is that more individuals will be enticed to apply for this position.

Enactment of this Ordinance will amend the City of Claremont Merit Plan accordingly and institute a full job description for the position of Deputy Building Inspector & Heath Officer. This change is requested by the City Manager.

Mr. Morris said the City is asking to amend the Health Services Inspector position in the Merit Plan to be a Building Inspector/Health Officer position. He gave a brief history. We've had a position vacant for approximately 6 months. There have been a couple of people interested, but when they saw the pay scale, they dropped out. There are a couple of applicants in the pool that don't have experience, but they have the right personality for the position, and they can be trained. With the current payscale, the most they can be offered is \$14.40-\$15.10. Looking across the building inspection field, the pay is \$20 per hour, or more. He talked to the Clerical Union to allow hiring a person at a higher rate, but the Union didn't feel that would work. He told the Union he may need to hire a second Merit Plan position. Mr. Morris said he noticed the Health Services Inspector position in the Merit Plan that was unfunded. Most of what we want the position to do is health related. With the Council goals of reducing blight and increasing Code compliance in rentals, he thinks most of that falls within the Health Services Inspector position. The job description was presented to the Personnel Advisory Board (PAB) and the PAB made its recommendation to the Council to move forward to approve and allow this position to be created in the Merit Plan. He also submitted to the PAB some changes to the Merit Plan (i.e. Legal Assistant change to Office Assistant). The PAB wanted more time to review the Merit Plan and didn't want to slow down the process, so they have requested the Council approve the amendment to the Health Services Inspector position to the Deputy Building Inspector/Health Officer position, so the City can move forward. The PAB will review and update the Merit Plan starting within the next month.

Candy Crawford, Personnel Advisory Board member, said the City Manager did a good job summarizing the PAB's position.

Ms. Kier said she was in favor of upping the pay range.

Mr. O'Hearne said this was not in the proper form as a substitute ordinance and that it needs to be sent back and come back for the next meeting.

Mr. Morris said this is a new job description. He said this is to amend the Merit Plan to change Health Services Inspector to Deputy Building Inspector/Health Officer. We're not amending the job description to this new job.

Mr. O'Hearne asked what ordinance number this is amending. Mr. Morris said he can look for an old ordinance number.

A motion was made by Ms. Kier and seconded by Mr. Damren to move the question.

Roll call vote:

O'Hearne - no

Kier - yes

Damren - yes

Matteau - yes

Koloski - no

Contois - yes

Stone - no

Lovett - yes

Motion carried 5-3

A motion was made by Mr. Damren and seconded by Ms. Matteau to adopt Ordinance 574 Amending Non-Union Employee Classification Plan on First Reading.

Mr. Damren read the ordinance into the record.

Roll call vote:

O'Hearne - no

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - no

Lovett - yes

Motion carried 6-2.

Resolution 2020-22 Victims of Crimes Act Grant – Public Hearing

WHEREAS the City of Claremont, New Hampshire has been awarded a United States Department of Justice Victims of Crime Grant in the amount of \$222,143.00 for a two-year period to hire and train a person for the position of ACERT Coordinator who will create and

facilitate an Adverse Childhood Experiences Response Team (ACERT) for the Greater Claremont Area; and

WHEREAS the City would like to accept and expend the funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept a grant in the amount of \$222,143.00 from the United States Department of Justice for the purpose of hiring, training and facilitation of said position; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$222,143.00 for the Police Department (from off-setting grant revenue) for the purpose of hiring and training of said position for the Claremont Police Department; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Chief Chase introduced Brent Wilmot, Newport Police Chief, saying that he did most of the work on this grant. Chief Chase said this focuses around ACES (Adverse Childhood Experiences). This grant will be used to hire a professional, not a police officer, that can offer services to the child/family. This is a new position and is completely funded through this grant from the Attorney General's office. In-kind match will be matched by all partners on this team. The ACERT Coordinator would facilitate this and keep track of this. There will be a partnership with Claremont and Newport. This will be very beneficial for the community and children who are going through these experiences these.

Chief Chase said the grant funding ends after two years and they would have to look for further grant funding. If grant funding is not available and we desire to continue, it is up to the Police Department to come to the Council for additional funding. He's hoping this is a renewable grant. Agencies who have this, find it beneficial. There is no expectation to fund this at the end of the two years.

Chief Chase said the ACERT Coordinator and partners will meet monthly to review the process to make sure it is beneficial.

A motion was made by Ms. Kier and seconded by Mr. Koloski to adopt Resolution 2020-22 Victims of Crimes Act Grant.

Ms. Kier read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Chief Wilmot said regarding sustainability, there are people watching this grant and are prepared to help financially going forward. They've already started sustainability discussions.

Roll call vote:

O’Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Resolution 2020-23 Overspend Welfare Budget – Public Hearing

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that it hereby grants permission to overspend the Welfare Department 2019 Budget, as approved, by up to \$65,000.00 to cover client costs, as required by New Hampshire RSA 165:1 et seq.

Such department over-expenditures shall not exceed the total bottom line appropriated for 2020. (2/3 Vote Required)

Mr. Morris said at a Council meeting a couple of months ago, that the City would be back to request permission to overspend the Welfare budget. The City is looking for reimbursement of some of the COVID-19 related costs.

Suzanne Carr, Welfare Director, said they were in the midst of a challenging budget cycle before the pandemic hit.

Mr. Morris said he is working with Norma Limoges, Public Works Office Manager) to get GOFERR (Governor’s Office for Emergency Relief and Recovery) funds for Welfare related costs.

A motion was made by Mr. Damren and seconded by Ms. Matteau to adopt Resolution 2020-23 Overspend Welfare Budget.

Mr. Damren read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:

O’Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes
Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

Resolution 2020-24 Accept and Expend Unanticipated Revenue – GOFERR Funds
COVID-19 Reimbursement – Public Hearing

WHEREAS, the Federal Government has declared COVID-19 a national pandemic and made available funds for reimbursement; and

WHEREAS, the Governor has created the GOFERR (Governor’s Office for Emergency Relief and Recovery) Committee which is dedicated to the timely, fair and transparent allocation and disbursement of CARES Act emergency relief funds to COVID-19 pandemic impacted communities, organizations and businesses; and

WHEREAS, the City would like to be reimbursed for expenses and related employee costs in dealing with said pandemic;

NOW THEREFORE BE IT RESOLVED by the City Council to accept and expend the sum of up to \$313,638.00 from GOFERR Funds, said sum to come from unanticipated revenue (with no impact on the tax rate) and;

BE IT FURTHER RESOLVED that the Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

Mr. Morris said Claremont is eligible for up to \$313,638. This resolution is to allow the City to accept the reimbursement and to expend it.

A motion was made by Mr. Contois and seconded by Mr. Stone to adopt Resolution 2020-24 Accept and Expend Unanticipated Revenue – GOFERR Funds COVID-19 Reimbursement.

Mr. Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:
O’Hearne - yes
Kier - yes
Damren - yes
Matteau - yes
Koloski - yes

Contois - yes
Stone - yes
Lovett - yes
Motion carried 8-0.

Mayor Lovett asked for a running tally as the City submits expenses. Mr. Morris said yes.

Resolution 2020-25 Accept and Expend Unanticipated Revenue – Emergency
Responders COVID-19 Stipend – Public Hearing

WHEREAS, the Governor of the State of NH has declared all Fire and Police Emergency Responders shall be eligible for extra weekly pay through June 30th 2020 due to the COVID 19 pandemic and made available funds for reimbursement; and

WHEREAS, the City would like to be reimbursed for this stipend provided by the State of New Hampshire through the CARES Act funding;

NOW THEREFORE BE IT RESOLVED by the City Council to accept and expend the sum of up to \$200,000, said sum to come from unanticipated revenue (with no impact on the tax rate) and;

BE IT FURTHER RESOLVED that the Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

At 9:15 p.m., Mr. Koloski said that he is a Call Firefighter and asked to be recused. He turned off his microphone and camera.

Mr. Morris said the Governor offered first responders, fire and police, an up to \$300 a week stipend for full-time, \$150 a week for part-time, and call firefighters receive a stipend. The resolution is for up to \$200,000 and the City will be asking for \$110,200.

A motion was made by Mr. Contois and seconded by Mr. Damren to adopt Resolution 2020-25 Accept and Expend Unanticipated Revenue – Emergency Responders COVID-19 Stipend.

Mr. Contois read the resolution into the record.

Mayor Lovett opened the public hearing. No one spoke. She closed it.

Roll call vote:
O’Hearne - yes
Kier - yes
Damren - yes
Matteau - yes

Koloski - recused
Contois - yes
Stone - yes
Lovett - yes
Motion carried 7-0.

At 9:19 p.m., Mr. Koloski rejoined the meeting.

Budget Presentation

Mayor Lovett polled the Council and most agreed to hold a budget discussion on Saturday, May 30.

Mr. Morris gave some information about the budget.

- The CARES Act signed into law 3-27-2020 gave workers an additional \$600 a week for up to 4 months.
- Many people have been made whole through the CARES ACT and the expectation will be that property tax and motor vehicle registrations will come in as expected.
- The risk the city faces will be if the pandemic goes on longer and the additional federal funds run out.
- State Rooms and Meals Revenues for March were \$26.5 million, which is about \$700,000 more than estimated, and \$1.5 million more than last year.
- With COVID-19, we do expect the State Rooms and Meals Revenue to end the year below expectations, but it is unknown at this time what the Rooms and Meals Revenues will be from March to June.
- We do predict a significant decline, and because of this, our proposed budget for FY 2021 has a 33.27% decrease in Rooms and Meals revenues.
- We feel a 1/3 reduction in Rooms and Meals Revenue is a reasonable assumption accounting for part of March, and all of April, May, and June.
- A few other areas of concern in the FY 2021 budget are:
 - additional expenses due to an increased need for Welfare (especially housing)
 - a decrease in tax interest revenue (abatement allowance for COVID-19)
 - decreased interest income from lower interest rates
- Because of this concern, we have:
 - Slightly increased Welfare Rent up to \$175,000
 - Budgeted \$25,000 more than last year in interest on taxes, which is still \$99,628 less than we collected last year.
 - Kept \$100,000 budgeted for interest earned on income, but that number is far below expectations.
- Revenue Highlights
 - Decreased Rooms and Meals by \$230,000
 - Decreased Highway Block Grant by \$15,000

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- Used \$341,000 of Unanticipated State Revenue to offset paving capital paving expenses.
- Maintained Vehicle Plate revenue at \$32,500
- Decreased Parks Department revenue by \$15,417
- Decreased Community Center/membership revenue by \$61,658
- Added \$78,000 COVID- Reimbursement
- Used \$530,000 of Fund Balance Surplus to offset losses
- Expense Highlights
 - Assessing Consulting Services down \$7,900
 - Plan to work on 3-year agreement with Whitney Consulting Group.
 - Plan for internal training to prepare staff to move into the Assessor position.
 - Municipal Complex maintenance up \$8,500
 - \$90,000 in compensation reserve to address Compensation Study.
 - \$10,000 to Southwest Community Services for shelter support.
 - \$32,000 in Streets and Roads for part-time Secretary position for:
 - retirement transition
 - COVID-19 cost recovery
 - \$10,000 in the Cemetery budget
 - \$8,000 for Pleasant Street Cemetery gates and pillars
 - \$2,000 for roads in Mountain View Cemetery
 - Water
 - Electricity down \$5,000
 - Sewer
 - Electricity down \$15,000

Summary

- Proposed budget equals tax decrease of .59%
 - Proposed City tax rate of \$15.18 down \$.09
 - Approved school budget is down \$.56
- Budget is prioritized around infrastructure maintenance and repair based on:
 - Need
 - Health and safety
 - Maintenance is cheaper than repair or replacement
 - Visual pride in our City
- The city will need to keep abreast of the state's budget process as we are preparing our own to make sure revenue projections are as accurate as possible, before final adoption of the budget by the City Council.

Mr. Morris asked if any Councilors had questions, to send them in to him.

Mayor Lovett said on the May 27th agenda, there will be a continuation of the budget discussion. She asked Councilors to think about goals in order to ensure the approved budget supports those goals.

COMMITTEE REPORTS

None

FUTURE AGENDA ITEMS AND DIRECTIVES

Ms. Kier asked to put on the May 27 agenda a discussion about an ordinance regarding wearing masks in public.

Mr. Stone said the Town of Salem had a case that met with a lot of resistance, and he urged Councilors to look at that.

Mr. Morris read a comment from Representative Merchant saying the mask mandate applies to receiving service, not an individual mandate. It's more for the business community to support public health and their own business health.

Mr. O'Hearne wants more information about the audit letter that was filled out by Assistant Mayor Damren. He wants a copy of what the auditor sent to the Finance Director and how it was sent to the Assistant Mayor.

Mr. Morris can look into it.

Mr. Stone would like to have on the next agenda a discussion of how the Council conducts the questionnaire as a Council, not as one individual.

Mr. O'Hearne was concerned about the City Manager's appointment of the Mayor to a HUD committee [Claremont Housing Authority]. Mr. Morris said that was discussed at a Council meeting and it was asked if any of the Councilors had an issue with it. He said she was appointed as a citizen. Mr. O'Hearne said he would like a legal opinion.

Mr. Koloski asked for a clarification about a flagpole being placed at Memorial Drive. Mr. Morris said he can look into it.

Mr. O'Hearne asked how much money is being spent for copies for the McKenzie Drive Memorial. Mayor Lovett said Public Works had requested public input, and she asked Ms. Russell to make copies of a letter to be distributed. Mr. Morris said those copies were charged to Public Works. Mr. O'Hearne asked if there were any other expenses. Mayor Lovett said she is not involved in creating any other expense for this project.

Mr. Koloski asked when the Council will get the CIP (Capital Improvement Plan) that was approved by the Planning Board. Mr. Morris will work on that.

Mr. O'Hearne said he mentioned to the City Manager that a firefighter had died in the line of duty and he hasn't heard anything about naming something after the firefighter.

Mr. O'Hearne said Mayor Lovett's letter regarding the McKenzie Drive Memorial said to respond to the Mayor's Council email.

Mayor Lovett said Mr. O'Hearne's request to name City property after the firefighter that was lost, occurred 1 ½ years ago. She asked Fire Chief Bryan Burr if there were any plans for the Fire Department to request naming a City property in his honor. She doesn't know the status. Mr. Morris said he spoke to Chief Burr and he is looking to dedicate the new engine to that person. Mr. Morris asked Chief Burr to work with the union to work on a memorial.

CONSULTATION WITH LEGAL COUNSEL

None

NON-PUBLIC SESSION PURSUANT TO RSA 91-A:3,II(a) – PERSONNEL

Mr. O'Hearne suggested, due to the late hour, to move this to a special meeting next week or to the beginning of the next meeting.

Councilors agreed to start the May 27 meeting at 6 p.m. and to hold the Non-Public Session toward the beginning of the meeting. Mr. O'Hearne estimated the Session would last about an hour.

ADJOURNMENT

At 9:50 p.m., a motion was made by O'Hearne and seconded by Ms. Matteau to adjourn.

Roll call vote:

O'Hearne - yes

Kier - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council